

YEMEN 2014 HUMAN RIGHTS REPORT

EXECUTIVE SUMMARY

Yemen is a republic with a constitution that provides for a president, a parliament, and an independent judiciary. Former president Ali Abdullah Saleh formally stepped down in 2012, when voters elected Abdo Rabbo Mansour Hadi, the sole consensus candidate, president in a vote generally considered free and fair. During the subsequent transition, elements of the transitional government sought to expand political participation to formerly excluded groups, such as women, youth, and minorities.

Throughout the year the Houthis, a Shia movement, forcefully expanded from their base in the northwest part of the country, capturing cities and taking over territory. By September they seized government buildings and key infrastructure. On September 21, 13 Yemeni parties signed a Peace and National Partnership Agreement (PNPA) to end the violence. On November 9, a largely technocratic, transitional cabinet was appointed per the PNPA. Previously, a National Dialogue Conference (NDC) had met in 2013 and during the year to make recommendations for the country's political future. The transitional government was also to implement these outcomes. The Houthi incursion increased sectarian hostilities, and al-Qaeda in the Arabian Peninsula (AQAP) launched numerous reprisal attacks. Authorities did not always maintain effective control over the security forces.

The most significant human rights problems were arbitrary killings, disappearances, kidnappings, and other extremist threats and violence committed by various groups and a weak and corrupt judicial system that did not provide for the rule of law.

Other human rights violations included the use of excessive force by government forces during demonstrations; torture and cruel, inhuman, or degrading treatment or punishment; poor prison conditions; arbitrary arrest and detention; lengthy pretrial detentions; some infringements on citizens' privacy rights; some limits on freedom of speech, press, assembly, association, religion, and movement; lack of transparency; corruption at all levels of government; violence and discrimination against women, children, persons with disabilities, and minorities; restrictions on worker rights; and trafficking in persons to include forced labor.

Impunity was persistent and pervasive. Prior to September 21, the government attempted to investigate and prosecute government and security officials for human rights abuses through special investigative committees, but political pressure and limited government capacity precluded significant action. Despite governmental efforts to disband the former police state and reform the security services, local nongovernmental organizations (NGOs) and activists reported that abuses continued. Security forces essentially remained immune from civilian oversight. These trends worsened after September 21 because Houthi integration into government ministries and the armed forces further reduced government capacity to conduct investigations.

Nonstate actors engaged in internal armed conflict with government forces and committed significant abuses, especially in the latter half of the year. During the first nine months of the year, an estimated 3,000 persons died in fighting between tribal militias, Houthi insurgents, and government forces in the north; and militant secessionist elements, government forces, and AQAP militants in the south. AQAP repeatedly attacked security installations and conducted frequent campaigns to kill government officials and individuals considered to have violated sharia law. The use of child soldiers by nongovernment militias persisted.

Section 1. Respect for the Integrity of the Person, Including Freedom from:

a. Arbitrary or Unlawful Deprivation of Life

Despite progress in security sector reform, the government did not exercise full control over military and security forces due to competing family, tribal, party, and sectarian influences.

There were numerous reports that current or former members of the security forces committed arbitrary or unlawful killings. Security forces, some affiliated with the former regime, and armed groups operated outside the law and committed human rights abuses (see section 1.g.).

On February 20-21, security forces used tear gas and live ammunition to disperse a protest by activists of the Southern Mobility Movement (Hirak) in Aden, killing three persons and injuring 12 others.

Politically motivated killings by nonstate actors, including terrorist and insurgent groups, increased, and targeted killings of military, security, and government officials by those claiming affiliation with AQAP increased significantly during

the year. The number of killings involving gunmen on motorcycles increased to the extent that the government banned motorcycles in the capital. In January motorcyclists shot and killed Ahmed Sharafeddin, a prominent Houthi leader and NDC delegate, and in May suspected AQAP members on a motorcycle shot and killed a military intelligence officer in Lahj Governorate. Unknown assailants killed moderate Houthi leader Mohammad Mutawakil in November.

In January assailants killed an Iranian diplomat during a kidnapping attempt, and in May unknown assailants killed two French embassy workers in a drive-by shooting.

On June 15, gunmen attacked a bus carrying military hospital staff in Aden, killing six and injuring at least 12 persons.

Impunity for security officials remained a problem, because the government was slow to act against officials implicated in committing abuses and using excessive force. The government took some steps to address impunity by removing some officers from their posts.

b. Disappearance

During the year there were reports of politically motivated disappearances and kidnappings of individuals associated with political parties, NGOs, and media outlets critical of various security forces within the government, as well as others reportedly kidnapped for supporting the Houthis in the north or Hirak in the south.

Tribal groups were responsible for kidnappings for ransom, as were other nonstate actors such as AQAP, according to the human rights NGO National Organization for Defending Rights and Freedoms (HOOD). While the incidence of kidnapping of citizens increased during the past year, as a result of deteriorating security in many areas of the country, kidnapping of foreigners decreased, probably because most foreigners had left the country.

Abductions were difficult for foreign entities to verify, unless they involved a foreigner or government official. Many unofficial groups abducted persons to achieve specific goals. Reports from local and international NGOs indicated decreased numbers of abductions compared with the previous year, primarily because of the lower number of foreigners in the country following increased instability in 2013 and heightened security precautions taken by the remaining

foreigners. Security officials indicated kidnappers abducted four foreigners during the year, compared with eight in 2013.

Nonstate actors targeted foreigners and those working for foreign diplomatic missions. AQAP members kidnapped a Western citizen in Sana'a in September 2013 and held him until he and South African kidnap victim Pierre Korkie were killed in a rescue attempt in December.

In February kidnappers seized German and British citizens but released them after several months.

In March kidnappers seized two UN staff members and held them for several days prior to release.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution prohibits such practices, but there were reports that elements of the security forces employed them. In 2010 the UN Committee against Torture reported the country's laws lacked a comprehensive definition of torture. Law and policy barred mistreatment of prisoners and detainees, but numerous violations occurred, some of which observers reported.

While the transitional government pledged to change the former regime's culture of oppression, human rights NGOs, former detainees, and prisoners continued to allege authorities employed torture and mistreatment. Most incidents of torture and abuse occurred during arrests. Government forces and their proxies responded at times with excessive force to demonstrations and protests in various parts of the country.

Amnesty International reported that authorities released Hirak activists Anwar Ismail and Khaled al-Junaidi from prison in November. Both had been arrested without charge in August. Authorities reportedly held Ismail and al-Junaidi incommunicado and tortured them during their four-month detention in Aden. Both men reported authorities beat them and hung them by their wrists for hours at a time during their imprisonment. Al-Junaidi claimed authorities held him in solitary confinement at al-Solban Political Security Prison, permitted only one visit, and did not allow him to see a lawyer. He described his cell as having no air circulation, light, or toilet. Authorities eventually released al-Junaidi when his

health deteriorated. In December security forces shot and killed al-Junaidi during a peaceful protest in Aden.

Prison and Detention Center Conditions

Prison conditions were harsh and life threatening and did not meet international standards. Prisoners lacked many basic needs.

Government officials and NGOs identified overcrowding, lack of professional training for corrections officials, poor sanitation, inadequate access to justice, intermingling of pretrial and convicted inmates, lack of case management control, lack of funding, and deteriorating infrastructure as problems within the 18 central prisons and 25 reserve prisons (also known as pretrial detention centers). Authorities held prisoners with physical or mental disabilities with the general population with no special accommodation.

Media reported that on November 14, an inmate killed another, al-Qaeda-affiliated inmate inside Sana'a's central prison. The inmates attacked each other with knives.

Local and international NGO reports and accounts by former detainees claimed some branches of the security forces operated extrajudicial detention facilities, although the government denied that it authorized this practice. There were reports that members of the government used official prisons for personal purposes. Private unauthorized prisons and detention facilities also existed. The NDC outcomes recommended closing unauthorized prisons.

Unauthorized "private" prisons and detention centers operated by tribes in rural areas functioned on the basis of traditional tribal justice. Tribal leaders sometimes placed "problem" tribesmen in private jails, sometimes simply rooms in a sheikh's house, to punish them for noncriminal actions. Tribal authorities often detained persons for personal or tribal reasons without trial or judicial sentencing.

Physical Conditions: According to the director of the Rehabilitation and Correction Authority, in July there were approximately 14,000 individuals in the country's prisons, 92 percent of whom were men between 18 and 35. Poor recordkeeping and a lack of communication between prisons and the central government made it difficult for authorities to estimate accurately the size of the prison population. Political prisoners reportedly faced torture, abuse, and other forms of mistreatment, while all prisoners experienced harsh physical conditions.

Human rights NGOs reported that 70 percent of detainees were either awaiting trial or were under remand subject to investigation. In some rural and women's prisons, as well as in some prisons in the capital, local NGOs reported that prison authorities held juveniles with adults. The Ministry of Human Rights' efforts to separate juvenile detainees from adults continued, although overcrowding and financial constraints hindered them. By custom young children and infants born in prison remained in custody with their mothers until age nine. Prison authorities performed pregnancy tests on all female prisoners upon entry into a facility. Prisons segregated male and female adult prisoners and subjected them to similar conditions, although NGOs reported improvements in women's prisons during the year.

Sana'a Central Prison, which has a capacity of 1,200, held approximately 2,500 prisoners. Aden Central Prison, with a capacity of 300 inmates, held more than 1,000 prisoners, and Hajjah Central Prison, designed for a capacity of 300 persons, held more than 650 inmates.

HOOD claimed bribery and corruption played major roles in prison mismanagement, and prisoners who paid bribes received better services and benefits.

Observers described most prisons, particularly in rural areas, as overcrowded, with poor sanitary conditions, inadequate food, and inadequate medical care.

No credible statistics were available on the number of inmate deaths during the year. Detainees did not always have access to potable water. Prison officials recognized the need to improve sanitation conditions and to isolate prisoners with contagious diseases, reporting, "Once one prisoner gets sick, they quickly all get sick." They cited inadequate supplies of drinking and bathing water and noted that open sewage trenches often existed inside the corrections facilities, causing more health problems. The Ministry of Interior (MOI) acknowledged prison conditions did not meet international standards and stated the government could not afford improvements. The transitional government reportedly reduced the prison budget by 50 percent during 2013 and kept the lower level during the year.

Administration: Recordkeeping was poor. Government restructuring also impeded improvement in recordkeeping. Many prisoners faced prolonged stays in detention beyond their sentences if they or their families were unable to pay fines or provide expected bribes.

Although the transitional government recognized the need to find alternatives to incarceration for nonviolent offenders, authorities took no action to address this need during the year. Authorities were slow to investigate credible allegations of problematic conditions. There was no ombudsman to serve on behalf of prisoners and detainees. Prisoners could submit complaints to judicial authorities, but according to NGO reports, authorities largely ignored such complaints. Authorities generally allowed prisoners and detainees visitors when family members knew a detainee's location, but granted limited access to family members of security-offense prisoners and detainees. They generally allowed prisoners and detainees religious observance.

Independent Monitoring: The government permitted visits to some facilities by independent human rights observers such as the International Committee of the Red Cross, but routinely denied parliamentarians and NGOs access to facilities to investigate claims of human rights violations. Local human rights NGOs and other organizations such as Human Rights Watch (HRW) also interviewed former prisoners and family members of prisoners to report on prison conditions. International observers stated they had access during the year to the "remand prisons" of the MOI and to prisons operated by one of the country's security and intelligence organs, the Political Security Organization (PSO).

International observers reportedly had access to some prisons operated by the AQAP-affiliated group Ansar al-Sharia in Abyan Governorate.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention, but authorities enforced the law inconsistently. In cases involving suspected security offenders and those affiliated with human rights NGOs or members of groups challenging the government, such as Hirak, arbitrary arrest and detention continued to occur.

Local human rights NGOs stated arbitrary detention was frequent in temporary prisons located in many areas. Elements of official security services or by others with the money and power to establish them might perpetrate such detentions.

In December 2013 officials of the PSO took a member of a minority religious group from his home and held him in prison in Sana'a without charge and without access to a lawyer. The individual reported authorities tortured him during the first 45 days of his detention. Authorities barred visitors and allowed him only one

telephone call to his family during the first eight months of detention. At the end of October, he remained in police custody, but with access to a lawyer and occasional visitors. Humanitarian organizations protested this individual's detention, and Western officials raised it with senior government officials.

In 2012 authorities arrested Tariq al-Amoodi without charge, while he was on duty as a soldier at Aden Intelligence Headquarters. Al-Amoodi remained in custody in Sana'a without appearing before a judicial authority. Following family and NGO interventions, military authorities acknowledged al-Amoodi's detention and allowed family visits. As of the end of September, authorities had neither initiated criminal proceedings against al-Amoodi nor officially notified him of the charges against him.

Role of the Police and Security Apparatus

The primary state security and intelligence-gathering entities, the PSO and the National Security Bureau (NSB), report first to the minister of interior and then the president. There was no clear definition of many of the NSB's duties, which have evolved from protecting the country from external threats to overlapping with those of the PSO, which is domestically focused and charged with identifying and combating political crimes and acts of sabotage.

The Criminal Investigation Division reports to the MOI and conducted most criminal investigations and arrests. The Central Security Forces, often responsible for crowd control and accused in the past of using excessive force, was renamed the Special Security Force (SSF) and placed under the direct authority of the interior minister, along with the counterterrorism unit. The Ministry of Defense also employed units under its formal supervision to quell domestic unrest and to participate in internal armed conflicts.

The SSF, Yemen Special Operations Forces, Presidential Guard (formerly the Republican Guard), NSB, and other security organs ostensibly reported to civilian authorities in the MOI and Ministry of Defense and in the Office of the President. Civilian leadership of these agencies improved following restructuring efforts outlined in the Gulf Cooperation Council (GCC) Initiative, which committed the government to reorganizing the security services and armed forces. Interest groups, including former president Saleh's family and other tribal and party entities, continued to influence these agencies, often through unofficial channels rather than through the formal command structure. Such influence, coupled with a lack of effective mechanisms to investigate and prosecute abuse and corruption,

exacerbated the problem of impunity. The November change in government led to new leadership within the security institutions, including a new interior minister, PSO chief, and SFS chief.

Arrest Procedures and Treatment of Detainees

The law provides that authorities cannot arrest an individual unless apprehended while committing a criminal act or served with a summons and that a detainee must be arraigned within 24 hours or be released. The judge or prosecuting attorney, who decides whether detention is required, must inform the accused of the basis for the arrest. The law stipulates authorities may not hold a detainee longer than seven days without a court order. The government frequently did not adhere to these requirements, due to lack of capacity and poor policy guidance. Human rights organizations reported several cases where authorities held detainees for more than one month in violation of the law, and citizens regularly accused security officials of ignoring due process in arrests and during detentions.

The law contains provisions for bail, but some authorities abided by these provisions only if they received a bribe. The law prohibits incommunicado detention, provides detainees the right to inform their families of their arrest, and allows detainees to decline to answer questions without an attorney present, but authorities did not always respect these rights. The law states the government must provide attorneys for indigent detainees, but it often did not do so. Tribal mediators reportedly settled almost all rural cases without reference to the formal court system.

Detainees often did not know which investigating agency arrested them, and the agencies frequently complicated matters by unofficially transferring custody of individuals among entities. Security forces routinely detained relatives of fugitives as hostages until the fugitive was located. Authorities stated they detained relatives only when the relatives obstructed justice, but human rights organizations rejected this claim.

Arbitrary Arrest: The government routinely practiced arbitrary arrest. The number of persons arrested arbitrarily was difficult to estimate, as authorities did not record many detainees' names, did not transfer some detainees to official detention centers, and arrested and released many detainees multiple times during the year. Nongovernmental groups also arbitrarily arrested persons.

Pretrial Detention: International monitoring organizations estimated that half of all detainees held by the MOI were either awaiting trial or held while an investigation was pending. Prolonged detention without charge or, if charged, without a public preliminary judicial hearing within a reasonable time, were common practices, despite their prohibition by law. Staff shortages, judicial inefficiency, and corruption reportedly caused trial delays.

e. Denial of Fair Public Trial

The constitution provides for an independent judiciary, but the judiciary was weak and not fully independent, since corruption and political interference severely hampered its operations. Litigants maintained, and the government acknowledged, that judges' social ties and occasional bribery influenced verdicts. Many judges were poorly trained and some allowed personal or political affiliations to affect their handling of cases. The government's lack of capacity and reluctance at times to enforce court orders, especially outside the cities, further undermined the credibility of the judiciary. Members of the judiciary were threatened and harassed to influence cases. Following the kidnapping of 12 judges during the year, members of the judiciary went on strike for two months to demand increased security.

Trial Procedures

Laws governing trial procedures apply to all citizens. The law considers defendants innocent until proven guilty. Trials are generally public, but all courts may conduct closed sessions "for reasons of public security or morals." There are no jury trials. Judges, who play an active role in questioning witnesses and the accused, adjudicate criminal cases. Defendants have the right to be present and to consult with an attorney in a timely manner. Defendants can confront or question witnesses against them and present witnesses and evidence on their behalf. The law provides for the government to furnish attorneys for indigent defendants in serious criminal cases, but the government did not always provide counsel in such cases. Defendants and their attorneys have access to government-held evidence relevant to their cases. Authorities allowed defense attorneys to counsel their clients, address the court, and examine witnesses and any relevant evidence. All defendants have the right to appeal, and the slow pace of court cases provided adequate time to prepare a defense. Defendants cannot be compelled to testify or confess guilt.

A court of limited jurisdiction considers security cases. A specialized criminal court, the State Security Court, operates under different procedures in closed sessions. This court does not provide defendants with the same rights provided in the regular courts. Defense lawyers reportedly did not have full access to their clients' charges, relevant government-held evidence, or court files.

In addition to established courts, there is a tribal justice system for noncriminal issues. Tribal judges, usually respected neutral sheikhs, nonetheless often also adjudicated criminal cases under tribal law. Persons tried under the tribal system usually were not formally charged but rather were publicly accused. Tribal mediation often emphasized social cohesion more than punishment. The results carried the same weight as court judgments, if not more, because the public often respected the tribal process more than a formal court system seen by many as corrupt and lacking independence.

Political Prisoners and Detainees

There were numerous reports of political prisoners and detainees. Activists accused the government of detaining Hiram activists, demonstration leaders, journalists, and persons with alleged connections to Houthi rebels. Authorities held some individuals for prolonged periods, while releasing many within days. Elements within the security forces reportedly continued to detain persons for political reasons on bases or within headquarters.

Confirmation of the number and assessment of the status of political prisoners or detainees was difficult. Authorities did not charge detainees publicly; their detentions were often short-term; and the government and other entities severely restricted or barred information to and access by local or international human rights organizations. Absent charges, it was difficult to determine whether detainees' actions had been violent or primarily consisted of advocacy and dissent. The government also sometimes did not follow due process in cases in which detained suspects were accused of links to terrorism.

Civil Judicial Procedures and Remedies

The law provides a limited ability to pursue civil remedies for human rights violations as tort claims against private persons. There were no reports of such efforts during the year. Citizens cannot sue the government directly but may petition the public prosecutor to initiate an investigation.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law prohibits these actions, but authorities continued such interference, although to a lesser extent under the transitional government. According to human rights NGOs, security force officials searched homes and private offices, monitored telephone calls, read personal mail and e-mail, and otherwise intruded into personal matters without legally issued warrants or judicial supervision. Authorities claimed security reasons sometimes justified their actions and at other times the attorney general personally authorized telephone call monitoring and reading of personal mail and e-mail. One security organization reported that, to do a house search, it first must obtain a warrant and a signed certification by an appointed “head of the neighborhood” and that two neighbors who serve as witnesses must accompany officers on the search. Human rights organizations disputed the independence of heads of neighborhood.

The law prohibits arrests or serving subpoenas between sundown and dawn, but several local NGOs reported that authorities took some persons suspected of crimes from their homes at night without warrants.

No citizen may marry a foreigner without permission from the MOI, the NSB, and, in some instances, the PSO, under a regulation authorities enforced arbitrarily. The government enacted the regulation to reduce a form of sex tourism in which significant numbers of foreigners, particularly Saudis and Emiratis, married young Yemeni women “temporarily” (as is possible under Islamic law) and then left the bride, frequently pregnant and without means of support, when the husband returned to his country and terminated the temporary marriage (see section 6, Women). The MOI typically approved marriages to foreigners if the foreigner provided an embassy letter stating that the government of the non-Yemeni spouse had no objection to the marriage and presented a marriage contract signed by a judge. Frequently, bribes facilitated approval.

Security forces sometimes detained relatives of fugitives as hostages until the suspect was located. In other cases detention of family members continued while the families negotiated compensation for the alleged wrongdoing. There were no reports that authorities injured or mistreated such family members.

g. Use of Excessive Force and Other Abuses in Internal Conflicts

Armed clashes continued in northern governorates, including Sa’ada, al-Jawf, and Amran, between supporters of the Houthi movement and supporters of both the

Sunni Islamist Islah Party and the Salafi Rashad Party, with assistance from elements of the country's armed forces. The fighting went largely unchecked during the first nine months of the year because central government control in those areas remained weak. At the end of the year, clashes continued in al-Bayda, Marib, and Arhab.

Observers reported the use of excessive force and other abuses by all parties in conflict areas. Clashes occurred as Houthis sought to expand control over territory and fought pro-Islah tribal militias and elements of the armed forces. Fighting grew increasingly sectarian as the Houthi militia advanced southward until they took control of Sana'a in September. Clashes between Houthi supporters and AQAP increased following the fall of Sana'a. Terrorist groups, including AQAP, regularly carried out attacks against government representatives and installations, Houthis, members of Hirak, and others accused of behavior violating sharia law.

Killings: All sides used excessive force in internal armed conflicts.

Fighting in al-Dhale in the early months of the year resulted in 50 dead, including 20 children, and hundreds injured.

Conflicts between the Houthi movement and its adversaries, which began in summer 2013, significantly escalated. Despite numerous ceasefires negotiated by several presidential committees, Houthi forces pushed southward to Amran, where they aligned with some members of the Hashid tribes against pro-Islah forces. In July, after fighting killed and injured hundreds, the Houthis occupied Amran. In July and August, intermittent clashes also occurred in al-Jawf Governorate between Houthis and pro-Islah tribesmen, with hundreds again reported dead and injured. In August, Houthi militants reportedly summarily tried and executed a man charged with murder in Amran.

In August and September, Houthi militias moved into Sana'a. Subsequent clashes with government forces and pro-Islah militia killed approximately 270 persons and injured more than 600. In September, Houthi militias captured Sana'a after fighting with supporters of Islah and government troops. On September 7 and 9, during mass demonstrations against President Hadi, government security forces fired on protesters who attempted to seize the prime minister's office, killing eight and injuring 67.

In October, AQAP launched retaliatory attacks against Houthi supporters, and on October 9, a suspected AQAP suicide bomber killed more than 50 individuals who

had gathered in Sana'a to protest President Hadi's choice for prime minister. In all AQAP-aligned militants killed more than 80 persons in Sana'a and other areas.

Targeted killings, usually directed at members of security organizations or foreign officials, increased during the year. In May and June, two separate attacks in Sayun killed and injured dozens of individuals, and in May there were bombings targeting military targets in Sana'a, Shabwah, and other areas of the country.

AQAP continued attacks on civilian and military targets, particularly in the south. On February 14, AQAP attacked the Central Prison in Sana'a, killing seven and enabling the escape of 29 inmates.

Jihadist groups in the south reportedly beheaded or crucified those accused of spying, and in August AQAP killed 18 government soldiers on leave in Hadramawt.

Child Soldiers: According to the Seyaj Organization for Childhood Protection, the number of child soldiers increased due to a growing number of armed conflicts. Seyaj reported that the government had not taken tangible steps to remove child soldiers from their units or to provide rehabilitation.

Although law and government policy expressly forbid the practice, children under age 18 directly participated in armed conflict for government, tribal, and militant forces, primarily as guards and couriers. The Military and Security Working Group of the NDC, among others, called for an end to the use of child soldiers.

In May the government signed a UN action plan to prevent recruitment of children into the armed forces, which established specific steps for the release of children serving in the armed forces and programs, their reintegration into the community, and the prevention of further recruitment. The plan also provides for aligning domestic legislation with international norms, investigating allegations of recruitment, and facilitating access to UN officials to monitor progress and compliance with the action plan.

There were significant obstacles to full implementation of the plan, since poverty and high rates of unemployment were the root causes of the recruitment child soldier. Child recruits often received money and food, whereas parents might perceive a child at school as a financial burden.

The poor birth registration system, especially in rural areas, complicated assessment of the extent of the problem and removal of underage soldiers.

Government efforts to prevent recruitment of child soldiers included displaying large banners on major city streets, near military camps, and in high-traffic neighborhoods. The Army and Security Working Group of the NDC recommended including a ban on child soldiers in the new constitution.

Tribal members under 18 routinely took part in tribal militias or armed groups affiliated with the central government.

Tribes, including some armed and financed by the government to fight alongside the regular army, used underage recruits in combat zones, according to reports by international NGOs such as Save the Children. Houthis routinely used child soldiers to operate checkpoints and search vehicles. Combatants generally did not forcibly recruit tribal child soldiers. Carrying arms is a central component of male identity and adulthood in tribal society and continued to be expected of tribesmen as young as 12. Married boys ages 12 to 15 reportedly were involved in armed conflicts in the northern tribal areas. Tribal custom considers married boys as adults who owed allegiance to the tribe. As a result, according to international and local human rights NGOs, half of tribal fighters were youths under 18. Other observers noted tribes rarely placed boys in harm's way but used them as guards rather than fighters. Observers regularly witnessed underage recruits manning military checkpoints, particularly Houthi checkpoints, and carrying weapons. The popular committees in the Abyan Governorate used boys between the ages of 13 and 17 to guard checkpoints, and NGOs reported that both Houthi and Sunni tribal groups recruited children in Sa'ada and Amran.

Militant groups also used child soldiers. AQAP recruited boys for combat operations against military and security forces.

See also the Department of State's annual *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Other Conflict-related Abuses: At the end of 2013 and beginning of 2014, Sunni and Salafi forces blocked the main road connecting Haradh and Sa'ada city to establish an economic blockade around Houthi forces, which had erected a military blockade around the Salafi institute in Dammaj. This action halted shipments of food and fuel and hampered delivery of humanitarian supplies to the approximately 80,000 internally displaced persons (IDPs) living in the area, thousands of African

migrant workers, and undocumented Yemeni laborers deported from Saudi Arabia. The blockade increased food and fuel prices and made it difficult for aid agencies to support vulnerable populations.

In March, during the fighting in al-Dhale between Hiram and the armed forces, the government reportedly prevented civilians from leaving the area. The commander of the army unit overseeing military operations in the area reportedly prevented aid agencies from entering al-Dhale, even when the agencies obtained permission to enter from government officials in Sana'a.

According to international NGOs, during fighting in Amran in May, June, and July, Houthi elements seized a number of schools, using them as housing for fighters and as detention centers. Media sources reported that, following hostilities in Sana'a in September, Houthi militants seized schools and used them as detention centers and as stores for weapons and ammunition looted from military camps.

In the northern part of the country, international relief organizations confirmed humanitarian assistance projects could not operate in areas under Houthi control without Houthi permission and sometimes without hiring Houthi staff. Nevertheless, NGOs reported increased cooperation from Houthi leadership related to delivery of humanitarian aid compared with previous years.

Section 2. Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The constitution provides for freedom of speech and the press "within the limits of the law," but the government did not always respect these rights. The government enforced restrictions on coverage of security- and military-related events, and harassed journalists. The government had not taken further action to amend the Press and Publications Law, unchanged since 1990 despite several initiatives to amend it.

Freedom of Speech: While there were some signs of improvement, there were reports of official suppression of freedom of speech.

Press Freedoms: There were some reports the government harassed journalists, and police used violence against them.

Although the government selected items for news broadcasts and other government-owned print media, it allowed broadcasts critical of the government. The government also televised parliamentary debates including aggressive criticism of corruption at government institutions and ministries. Other official media outlets, including newspapers and radio stations, carried commentaries and programs very critical of the government. Government media also presented live and unedited coverage of plenary sessions of the NDC and conducted live interviews with representatives of the full range of political opinions. In February the government appointed a spokesperson in the Office of the Prime Minister who held press conferences to brief journalists on the weekly meetings and discussions of the cabinet.

In September, Houthi rebels shelled Yemen TV, the government's official television station, killing six and briefly forcing the station off the air. It then broadcast temporarily from an undisclosed secondary location in Sana'a. As of the end of October, Yemen TV broadcast from its headquarters, but Houthis prevented station management from returning to their posts. Other employees and studio crew resumed their work at the station.

Additionally, the Houthis broke into pro-Islah Suhail TV in September, looted its equipment, and forced it to stop broadcasting. Suhail TV remained off the air at year's end. Houthi rebels briefly detained seven employees, interrogated them, and asked them for the addresses of senior employees.

Despite some improvements, authorities reportedly still used bureaucratic requirements to obstruct media outlets from obtaining publishing licenses. The law stipulates that newspapers and magazines show a bank statement of 700,000 rials (\$3,260) and have one million rials (\$4,660) in operating capital to obtain a license to publish. According to the law, newspapers and magazines must pay 10,000 rials (\$47) annually to renew their licenses. Similarly, correspondents of regional and international media outlets must pay 5,000 rials (\$23) annually to renew their work licenses.

The government of former president Saleh maintained a national monopoly over television and radio broadcasting. The transitional government approved legislation to regulate broadcasting and television channels, and radio stations have proliferated. A number of domestic private stations operated under media production company permits, and several stations broadcast from abroad for domestic audiences.

Media reports indicated the government sometimes prevented media outlets from reporting on the fighting between army troops and AQAP in the south.

Violence and Harassment: Government harassment of journalists lessened during the year, but there were reports of police violence against journalists, especially during coverage of protests. Media reports indicated the NSB monitored local calls by journalists. NGOs reported the majority of threats against journalists stemmed from nonstate actors, including tribal leaders, AQAP, and former regime loyalists but primarily from supporters of the Houthi movement.

In March, NSB officers and personnel attacked an al-Arabiya television crew covering the arrival of a convoy of detainees outside the Specialized Criminal Court in Sana'a. The NSB officers reportedly beat the crew and seized their camera.

In May the Ministries of Defense and Information reportedly asked reporter Hammdi al-Bokari and cameraman Sameer al-Nimri of al-Jazeera to leave Shabwah Province immediately and cease reporting on the fighting between military troops and AQAP militants. The two ministries threatened the al-Jazeera reporters with revocation of their work licenses if they continued covering events in Shabwah. Authorities held the crew in a hotel in Shabwah for four days before allowing them to leave. The government did not order any other media outlet reporting on the fighting from Shabwah to depart. The website of the Ministry of Defense published a report in which it criticized al-Bokari and accused him and al-Jazeera television of unprofessionalism.

In June members of the armed forces attacked Sky News Arabia correspondent Mohamed al-Qadhi and cameraman Sami al-Ansi and attempted to seize their equipment while they were reporting on a protest against the fuel shortage in Sana'a.

In July the Yemeni Press Syndicate accused Houthis of press freedom violations, including attacks, kidnappings, surveillance, and threats. It stated Houthi militants kidnapped journalist Yusuf Hazebe and reporter Yusuf al-Qahmi, detained them in a sports stadium for four days, and seized their equipment, including cameras and memory cards, reportedly because of their reporting on fighting in Amran. Also in July the Yemeni Press Syndicate and Freedom Foundation stated that armed Houthis attacked the house of journalist Yahya al-Thulaya in Amran. Freedom Foundation alleged Houthis targeted al-Thulaya because of his reporting,

specifically an interview he gave on Yemen TV in which he described the humanitarian emergency in Amran.

In August unidentified gunmen fired on the car of Abdulrahman Hameed al-Deen, program director for the official Yemen TV. He was admitted to the hospital where he died the following day from his injuries; several days later, unknown persons placed an explosive device in the car of Yemen TV director Ibrahim al-Abyadh, but explosive experts defused the device.

An editorial by the government's official newspaper *Al-Thawra* (The Revolution), published in June, accused al-Yemen al-Yawm of inciting hatred and violence and jeopardizing social peace as well as constituting a threat to the state's security and stability. The newspaper stated the Ministry of Information never issued a license to al-Yemen al-Yawm television and that the station's management never requested one. On December 16, Houthi militia seized control of *al-Thawra* and replaced its editorial staff.

Censorship or Content Restrictions: The government penalized some of those who published items contrary to government guidelines by refusing to print their newspapers and magazines. In February, at the behest of local authorities in Aden, the government-owned 14 October printing press refused to print the *Aden al-Ghad* newspaper. When journalists protested the blackout the next day, police dispersed them with tear gas.

Customs and Ministry of Culture officials occasionally confiscated foreign publications regarded as either pornographic or religiously objectionable, according to Freedom Foundation. There were no reports of politically oriented foreign publications confiscated or banned by officials of Customs or the Ministry of Culture.

The government required book authors to obtain certification from the Ministry of Culture for publication and to submit copies to the ministry. Publishers sometimes refused to deal with an author who had not obtained certification. The ministry approved most books, but long delays were frequent. Both the ministry and the PSO monitored and sometimes removed books from stores. A ban continued on publishers distributing books deemed pornographic.

Libel Laws/National Security: The law criminalizes criticism of the "person of the head of state," although not necessarily "constructive" criticism; the publication of "false information" that may spread "dissent and division among the people";

materials that may lead to “the spread of ideas contrary to the principles of the Yemeni revolution”; and “false stories intended to damage Arab and friendly countries or their relations” with the country. Citing these restrictions the Specialized Press and Publications Court intimidated journalists with excessive prosecutions for criminal defamation.

Internet Freedom

Censorship affected internet freedom, and there were notable cases of government intrusion into cyberspace. The state-owned Public Telecommunications Corporation blocked user access to Twitter and Facebook on several occasions. Government censorship of social media usually lasted for a few hours and targeted a range of internet providers in a geographic location. In July, Twitter was inaccessible in Sana’a for a few hours per day during peak hours. Immediately prior to the Houthi takeover of Sana’a on September 21, the government closed all mobile telephone communications for a day.

There were reports the government monitored Facebook pages, especially those affiliated with political groups and activists who used virtual forums to promote demonstrations and communicate with supporters. The government also attempted to create fake accounts to discredit such pages, but social media’s versatility and the proliferation of online platforms outpaced the government’s capacity to conduct surveillance.

The number of news outlets deploying online and virtual presence outlets substantially increased. The number of online news outlets and websites significantly outnumbered print media. These newly established media outlets lacked professionalism and credibility and more often than not served as outlets for ideological groups or political parties. The increase in news outlets has not led to greater transparency or factual reporting.

Internet usage was demonstrably rising. According to the Ministry of Telecommunication and Communication Technology, the number of internet users increased from 14.9 percent in 2012 to an estimated 17 percent in 2014. The locally based Social Research and Development Center, however, reported that only 14.2 percent of the population, located primarily in urban areas, had internet access.

The scarcity of electricity, unavailability of access points, poor quality of internet lines, and expensive access rates limited internet access.

Academic Freedom and Cultural Events

Political parties frequently attempted to influence university academic appointments and faculty and student elections. They actively recruited new students into party branches specifically created as youth divisions (for example, the General People's Congress Youth Division and the Islah Youth Division), through which the parties could mobilize youth on campuses.

The National Security Bureau maintained permanent offices on campuses, reflecting continued government concern about security and, in some cases, controversial speech. Party-affiliated officials at the Ministry of Higher Education and academic institutions reviewed prospective university professors and administrators for political acceptability before hiring them and commonly showed favoritism toward supporters of specific political parties. There were no reported instances of censored curriculums, sanctioned professors or students, restrictions on travel, or intimidation that led to self-censorship, censored films, or canceled plays, art exhibits, or musical performances.

b. Freedom of Peaceful Assembly and Association

The law provides for freedom of assembly and association. While the government generally respected these rights, some problems existed.

Freedom of Assembly

The law provides for freedom of assembly. Authorities largely respected this right, and both large- and small-scale demonstrations continued during the year. At times security forces or competing political groups attacked and used excessive force against protesters.

On February 20 and 21, military and police forces used live ammunition against Hirak protesters in Aden, killing three and injuring at least 12.

In April security forces in Aden, citing a threat to security, prevented Hirak from organizing protests to commemorate the 20th anniversary of the 1994 civil war. The organizers subsequently moved the protest to Mukalla, where thousands of protesters peacefully gathered without interference.

In August and September, activists held massive antigovernment demonstrations almost daily in Sana'a and other large cities to protest the lifting of oil subsidies. The demonstrations were largely peaceful, and government forces acted with restraint until September 7, when government security forces fired on protesters who attempted to seize a government facility in Sana'a by force. Eight protesters died and 67 were injured. During a demonstration in Aden on November 30, security forces killed one individual and injured several others. On December 16, one demonstrator in Aden died from exposure to tear gas.

Freedom of Association

The law provides for freedom of association, and the government usually respected this right, although there were some instances of interference with this right. The law regulates associations and foundations and outlines the establishment and activities of NGOs. Registration is required annually. The law exempts registered NGOs from taxes and tariffs and requires the government to provide a reason for denying an NGO registration, such as deeming an NGO's activities "detrimental" to the state. It forbids NGOs' involvement in political or religious activities. It permits foreign funding of NGOs. The law requires government observation of NGO internal elections but, because of the large number of NGOs, it rarely did so. The government sometimes appeared to enforce restrictions selectively based on competing party interests.

Associations and NGOs operated openly, but with some government interference. The government cooperated to varying degrees with the more than 9,200 civil society organizations in the country, including human rights NGOs, depending on their problems of concern. Civil society organizations and NGOs not focused on human rights experienced minimal restrictions on their activities.

c. Freedom of Religion

See the Department of State's *International Religious Freedom Report* at www.state.gov/religiousfreedomreport/.

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The law provides for freedom of internal movement, foreign travel, emigration, and repatriation, and the government generally respected these rights, with some restrictions. Prior to September the government cooperated with the Office of the

UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to IDPs, refugees, returning refugees, asylum seekers, stateless persons, and other persons of concern. Houthi presence, however, made it difficult for UNHCR's implementing partners to reach many areas of the country due to security concerns.

According to the UNHCR, the country's laws and policies were consistent with international standards, but the government's capacity to protect and assist persons in need was limited. The government's ability to provide services in some parts of the country was weak, since it focused limited resources on maintaining stability during the political transition.

In-country Movement: The government at times restricted domestic travel by refusing to issue travel permits to conflict areas, and the army, security forces, and tribesmen maintained checkpoints on major roads. In many regions, especially in areas outside effective central security control, armed tribesmen frequently restricted freedom of movement, operating their own checkpoints, sometimes with military or other security officials, and often subjecting travelers to physical harassment, extortion, theft, or short-term kidnappings for ransom. The number of nongovernment checkpoints increased in many governorates as central government control in those areas weakened. Social discrimination severely restricted women's freedom of movement. Women in general did not enjoy full freedom of movement, although restrictions varied by location. Some observers reported increased restrictions on women in conservative locations where government control was weaker or absent, such as Sa'ada. Security officials at government checkpoints often required immigrants and refugees traveling within the country to show they possessed resident status or refugee identification cards. At times local officials reportedly did not honor official documents.

Foreign Travel: The law requires women to have the permission of a husband or male relative before applying for a passport or leaving the country. A husband or male relative may bar a woman from leaving the country by placing a woman's name on a "no-fly list" maintained at airports, and authorities strictly enforced this requirement when women traveled with children. The NDC outcomes recommended lifting restrictions on women's travel. The government limited the movement of foreigners, who were required to obtain exit visas before leaving the country.

Internally Displaced Persons (IDPs)

Within its very limited capacity, the government provided protection and assistance to IDPs, mainly by facilitating international groups' humanitarian efforts within limits dictated by local security concerns.

According to the UNHCR and the UN Office for the Coordination of Humanitarian Affairs, there were nearly 334,000 registered IDPs as of November. The vast majority of IDPs displaced by the protracted multisided conflicts in the north were located in three governorates: Hajjah, Sa'ada, and Amran. In Hajjah Governorate, 12,000 IDPs lived in camps at al-Mazraq, the majority of whom were Muhamasheen, a marginalized and particularly vulnerable group.

As a result of fighting in the early months of the year between Houthi and pro-Islah forces in Amran, a reported 35,000 IDPs fled the governorate, but sources indicated that many of those IDPs returned to their homes following the Houthi withdrawal from the area in July and August. In August, Houthi-Islah clashes in al-Jawf Governorate reportedly caused an estimated 10,500 IDPs to leave the area.

The UNHCR reported that 90 percent of IDPs displaced by AQAP's conflict with government forces in the south in 2012-13 had returned to their homes by June.

Humanitarian organizations' access to IDPs varied by region. IDPs often dispersed over a wide geographic area, making access difficult. In Sana'a access improved during the year, although security concerns impeded delivery of aid. Inaccessibility prevented humanitarian assistance from reaching IDPs in certain districts of al-Jawf and Amran Governorates, although the UNHCR and NGOs maintained a presence in Sa'ada city, Haradh, and Hajjah. Humanitarian organizations continued to report periodic difficulties in accessing parts of Sa'ada Governorate, in part due to obstruction by Houthi-affiliated authorities.

Humanitarian organizations had limited access to southern governorates due to security concerns, but the UNHCR had offices in Aden, Kharaz, and elsewhere in the country. Ninety-six percent of IDPs in the south lived outside official camps, sheltering with host families and relatives in communities, scattered settlements, schools and empty public buildings, or under trees and bridges. Journalists reported that in the worst areas, many IDPs were malnourished and lacked basic requirements such as clean water, food, medicine, and sanitation. There was also a marked increase in food insecurity throughout the country; nearly half of the population did not have enough to eat. Rates of acute malnutrition were high among displaced persons and other vulnerable groups.

Protection of Refugees

Many refugees became increasingly vulnerable due to the worsening economic situation and insecurity in the country. Somalis, Ethiopians, Eritreans, and others shared the general poverty of the country, and many sought to cross the border into Saudi Arabia, despite difficulty and danger at the border. Within the country authorities did not limit refugees to camps or particular areas, and refugees generally did not suffer harassment. The economy offered few opportunities, however, for more than subsistence living.

Access to Asylum: No law addresses the granting of refugee status or asylum, and the government has not established a system for providing protection to asylum seekers. The government worked with the UNHCR to establish formal structures. The government lacked the ability to conduct refugee status determinations on its own, but it continued to grant refugee status to Somalis who arrived in the country after 1991. With only limited international assistance, authorities continued to provide automatic refugee status to Somalis who entered the country. Of the UNHCR-estimated 246,000 refugees in the country as of July, approximately 95 percent (230,000) were Somali. The remainder was from Ethiopia (the majority of new arrivals), Eritrea, Iraq, Syria, and other countries recognized under UNHCR's mandate. The UNHCR sought to conduct individual refugee status determinations, but the government did not consistently allow it to do so for non-Somalis, whom the government generally considered economic migrants. The relative weakness of data collection rendered identification and processing of migrants and refugees slow and unreliable, although the UNHCR and its partners conducted regular monitoring missions in detention centers throughout the country.

Refoulement: The government repatriated rejected asylum seekers, particularly from the Horn of Africa (except Somalia), without prolonged detention.

Refugee Abuse: Multiple NGOs reported numerous, grave instances of refugee abuse, primarily at the hands of criminal groups and often with the knowledge and complicity of security officials. These reports indicated criminal trafficking groups built a large number of "camps" near the Yemeni-Saudi border city of Haradh where migrants hoping to reach Saudi Arabia were held for extortion and ransom. Witnesses observed evidence of abuse, including broken bones, ripped-out fingernails, cigarette burns, gouged out eyes, and lacerations caused by rape. Some migrants reported witnessing killings by captors. NGOs reported criminals tortured migrants while family members listened by telephone until ransom was paid. Female migrants also reported numerous incidents of gender-based violence.

Government officials were reportedly aware of these camps and conducted occasional raids but failed to prosecute the perpetrators.

Section 3. Respect for Political Rights: The Right of Citizens to Change Their Government

The law provides citizens with the ability to change their government peacefully through periodic elections based on universal suffrage. The government initiated a new voter registration program for possible future elections in cooperation with international organizations.

Elections and Political Participation

Recent Elections: Observers generally considered the one-candidate election conducted in 2012 to be free and fair. The NDC, although delayed, remained broadly on track to meet its objectives and concluded in January, generating nearly 1,800 recommendations, including the extension of President Hadi's term through the end of the transition.

The Peace and National Partnership Agreement, which ended the violence associated with the Houthi entrance into Sana'a, was signed by 13 parties in September and called for implementation of the NDC outcomes, including elections and a new constitution. The Constitutional Drafting Committee, which has been meeting since March, continued its work as of year's end.

Political Parties and Political Participation: The law requires political parties to be national organizations that cannot restrict their membership to a particular region, tribe, religious sect, class, or profession. The implementation of the 50-50 power-sharing agreement outlined in the GCC Initiative allowed a range of political parties to organize and operate without undue restriction or outside interference, although the media reported instances of harassment of political party members. The constitution prohibits the establishment of parties that are contrary to Islam, "oppose the goals of the country's revolutions," or violate the country's international commitments.

A number of parties were active during the year. The Houthis, who actively participated in the NDC, thus far declined to seek recognition as a political party.

Tribalism distorted political participation in previous years and still influenced the composition of parliament and ministries within the central government. Observers noted significant tribal influence in elections and the staffing of government ministries.

Participation of Women and Minorities: A quota of at least 30 percent women in all transitional political bodies and ensuing legislative and executive institutions exists. Thirty percent of NDC delegates were women, and women chaired many committees and working groups; the NDC outcomes included a 30 percent quota for women in all branches of government.

The NDC had one delegate representing the minority group commonly known as “Muhamasheen” or “Akhdam.” According to some estimates, the “Muhamasheen” comprised up to 10 percent of the population. Although only one of the 565 delegates, this representation was the community’s first official political role.

Section 4. Corruption and Lack of Transparency in Government

While the law provides criminal penalties for official corruption, the government did not implement the law effectively, and officials frequently engaged in corrupt practices with impunity. A burdensome process creates a separate legal system for the political elite. According to the constitution, approval of one-fifth of the members of parliament is necessary to conduct a criminal investigation on a deputy minister or higher-ranking official. A two-thirds majority in parliament and presidential permission are then required to bring criminal investigation results to the general prosecutor for indictment. The government did not use the procedure during the year and employed it infrequently in prior years.

Corruption: The culture of corruption was pervasive, and observers reported petty corruption in nearly every government office. Job candidates often expected to purchase their positions. Observers believed tax inspectors undervalued assessments and pocketed the difference. Many government officials and civil service employees received salaries for jobs they did not perform or multiple salaries for the same job. Corruption also regularly affected government procurement.

Analyses by impartial international and local observers, including Transparency International, agreed that corruption was a serious problem in every branch and level of government, and especially in the security sector. International observers presumed government officials and parliamentarians benefited from insider

arrangements, embezzlement, and bribes. Political leaders and most government agencies took negligible action to combat corruption.

In November 2013 Transparency International reported police harassed members of its Yemeni branch, the Yemeni Team for Transparency and Integrity (YITI) in Sana'a. According to YITI the group's activists were gathering information concerning police and military bribery as part of an anticorruption campaign when police accosted the group, with one police officer pointing a rifle at YITI staff.

Reorganization of the Ministry of Defense and MOI explicitly addressed corruption.

The Central Organization for Control and Audit (COCA) is the national auditing agency for public expenditures and the investigative body for corruption. The president appointed its top officials. COCA presented its reports to parliament but did not make them publicly available. In cases involving high-level officials, COCA submitted reports directly to the president, who had the power to refuse to accept the reports. Since COCA's inception in 1999, authorities have prosecuted only low-ranking officials for corruption.

Some police stations reportedly maintained an internal affairs section to investigate security force abuses, and citizens had the right to file complaints with the Prosecutor's Office. The MOI had a fax line for citizens to file claims of abuse for investigation. There was no available information on how many fax complaints the ministry received or investigated.

In August, to combat fraud and corruption in the government payroll system, the government implemented a plan to collect biometric information on all government employees, including soldiers and security forces, and to create a central registry designed to eliminate tens of thousands of fraudulent names and double-dippers from the payroll. This registry, which by year's end included nearly half a million civil servants, reportedly identified 5,000 workers who illegally received more than one paycheck. Additionally, the government will begin paying soldiers and security forces via bank or post office accounts, bypassing paymasters who had previously paid soldiers in cash, to ensure only the intended individuals will collect salaries.

The independent Supreme National Authority for Combating Corruption (SNACC) receives complaints and develops programs to raise awareness of corruption. It includes a council of government, civil society, and private sector representatives.

A lack of capacity, particularly in terms of financial analysis, hampered the SNACC.

The SNACC received 350 complaints and 3,655 financial disclosures by year's end and examined 870 cases, referring 15 cases to public prosecution. Yemen Parliamentarians Against Corruption (Yemen PAC), the local branch of Arab PAC, sought to stimulate action by the legislative branch to combat corruption. Without any legal mandate, Yemen PAC monitored the activities of anticorruption institutions such as the SNACC and provided limited, unofficial oversight of their activities.

As a part of the transitional government's pledge to maintain transparency throughout the course of the NDC, the government broadcast NDC meetings live on television and radio, and the NDC Secretariat established a website providing background information and daily updates of working group activities and other NDC news.

Financial Disclosure: The law requires annual disclosure of financial assets by all ministers, deputy ministers, agency heads, members of parliament, and Shura Council members. Disclosures are provided to the SNACC for verification. The information was not publicly available, and the SNACC published only the number of financial disclosures received and noted the names of the officials who failed to submit a disclosure. The SNACC may also request disclosures from any other government employee. The law does not require disclosure of assets of children or spouses. It provides for penalties for false filing of information.

Approximately 28,500 public employees filed financial disclosure statements with the SNACC, with an unknown number of noncompliance cases submitted to the Public Prosecutor's Office for action.

Public Access to Information: The country's "right of access to information" law requires establishment of an independent agency to respond to requests for information and resolve grievances when authorities deny requests. The government did not, however, establish that agency. The Houthis established extralegal "resolution committees" and "monitoring committees" within ministries, as part of their continued efforts to establish parallel government institutions, while at the same time inserting themselves into government machinery.

The Ministry of Finance is required to publish the government budget online, in print, and in CD format. Information related to contract awards, including

geographical area, company, and terms of the contract, was publicly available through the High Tender Board website and announcements in state media. Government spending, however, particularly at the local level and with respect to military and security, and data relating to extractive industries were murky and difficult to trace.

The law provides for journalists to have some access to government reports and information, but the government did little to ensure accessibility or transparency.

Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Domestic and international human rights groups generally operated without outright government restriction, but lower-level government officials, particularly those in security organizations, were occasionally uncooperative and unresponsive to human rights groups' views and requests for information. Groups attempted to investigate human rights cases, and some local and international organizations reported obstacles in accessing victims, prisoners, and prisons. International, regional, and local media published their reports.

Domestic human rights NGOs operated with little government restriction. They reported that the government, specifically the Ministry of Human Rights and the Ministry of Social Affairs, worked closely with them on human rights programs promoting women's rights and prison reform.

According to the Office of the High Commissioner for Human Rights and some human rights organizations that attempted to obtain licenses, the Ministry of Social and Labor Affairs interfered with the licensing of some domestic human rights-related organizations that it viewed with suspicion, including organizations focused on accountability and transitional justice.

The United Nations or Other International Bodies: The government generally cooperated with international bodies. In February it accepted 166 of 191 recommendations made by the UN Human Rights Council and agreed to study the other recommendations further. The Ministry of Human Rights facilitated visits by delegations from the Danish Institute for Human Rights, the International Labor Organization (ILO), and other international groups. The only complaint reported by international NGO representatives was difficulty obtaining residency permits. The Ministry of Foreign Affairs supported authorizing visas for NGO

representatives, but other government elements hampered visa issuance. It was unclear if this was a bureaucratic or policy obstacle.

Government Human Rights Bodies: Within the NDC, multi-stakeholder working groups focused on a wide spectrum of problems pertaining to human rights, including freedom of press and expression, women's and minority rights, and religious diversity.

Section 6. Discrimination, Societal Abuses, and Trafficking in Persons

The law provides for equal rights and equal opportunity regardless of race, gender, language, beliefs, or disability, but the government did not consistently enforce the law. Discrimination based on race, gender, social status, sexual orientation and gender identity, and disability remained a serious problem. Some groups, such as the marginalized Muhamasheen community (an ethnic group largely descended from East Africans) and the Muwaladeen (Yemenis born to foreign parents), faced social and institutional discrimination based on social status. Despite significant female participation in the revolution and in the NDC, societal discrimination severely limited women's ability to exercise equal rights.

Women

Rape and Domestic Violence: The law criminalizes rape, but does not criminalize spousal rape because a woman may not legally refuse sexual relations with her husband. The government did not effectively enforce the law against rape. According to a local NGO, there were 16 rape cases as of September, seven of which involved women. The punishment for rape is imprisonment for up to 25 years, but in August the courts sentenced two men to death after convicting them of raping a 13-year-old boy in Sana'a. In June the courts sentenced a rapist to 20 years in prison and fined him 12 million rials (\$56,000).

There were no reliable rape statistics, because the social stigma and fear of retaliation sharply limited willingness to report the crime.

Most rape victims did not report the crime due to fear of shaming the family, incurring violent retaliation, or being prosecuted. By law authorities can prosecute rape victims on charges of fornication if a perpetrator is not charged. There were no such reports during the year. According to law without the perpetrator's confession, the victim must provide four male witnesses to the crime.

The law states that a man should be executed if convicted of killing a woman. The law provides women with protection against domestic violence except spousal rape under the general rubric of protecting persons against violence, but authorities did not enforce this provision effectively. Spousal abuse generally was undocumented, but women's groups asserted that physical, emotional, and sexual abuse within marriage was widespread.

Observers largely viewed courts as corrupt or inefficient. Criminal sanction for spousal violence was rare. The tribal arbitration process rather than criminal courts usually adjudicated cases of violence against women. Spousal abuse generally was undocumented, but women's groups considered it a major problem. Authorities considered violence against women a family affair, and it was more likely to be handled through tribal arbitration than to be reported to police. Local female tribal experts argued that tribal arbitration is fairer for women and that victims often preferred it to the courts for that reason. Due to social pressures, authorities expected an abused woman to take her complaint to a male relative, rather than to authorities, to intercede on her behalf or provide sanctuary. For these social reasons, as well as the corruption and inefficiency of the justice system, criminal proceedings in cases of domestic abuse were rare.

Small shelters for battered women in Sana'a and Aden assisted victims, and telephone hotlines operated with moderate success in major cities. The large majority of women in rural areas had little access to shelters or other assistance.

Women's rights activists and the media continued to investigate and report on violations of women's rights. During the year NGOs and the Ministry of Human Rights sponsored several women's rights conferences dealing with violence against women, increasing the political representation of women, and economic empowerment. In July the Yemeni Women Union, in collaboration with the Foundation for Peace, sponsored a seminar in Aden to discuss the rights of women following the NDC and the role of civil society in support of women's rights.

The MOI's Women and Children Office trained police to improve their response to abuses, including rape. It also maintained a telephone number dedicated to reporting abuses. The number reportedly received dozens of calls per month, and the office claimed it would investigate all cases. The Ministry of Information broadcast programs on official television and radio stations promoting women's rights, but it did not cover some sensitive topics, such as forced marriage and illiteracy. The NDC included gender problems in several of its working groups and in its final outcomes.

Female Genital Mutilation/Cutting (FGM/C): The law does not prohibit female genital mutilation/cutting (FGM/C), although a 2001 ministerial directive banned the practice in all government and private health facilities. According to a current estimate by the UN Children’s Fund (UNICEF), 23 percent of women have undergone FGM/C. In some coastal areas influenced by cultural practices from the Horn of Africa, such as Mahara and Hodeidah, up to 90 percent of women reportedly have been subjected to FGM/C. UNICEF reported 97 percent of FGM/C procedures took place in the home, and found Type 2--partial or total removal of the clitoris and the labia minora, with and without excision of the labia majora--in 83 percent of studied cases. The Women’s National Committee and the Ministry of Endowments and Religious Guidance provided a manual for religious leaders on women’s health problems, including the negative health consequences of FGM/C. The UNICEF report concluded that, despite an awareness campaign, the country still lagged in addressing the problem.

Other Harmful Traditional Practices: The penal code allows leniency for persons guilty of committing an honor crime or violently assaulting or killing a woman for perceived “immodest” or “defiant” behavior. The law does not address other types of honor crimes, including beatings, forced isolation, imprisonment, and forced early marriage. The law also allows for a substantially reduced sentence when a husband kills his wife and a man he believes to be her lover.

Sexual Harassment: No specific laws prohibit sexual harassment. The extent of sexual harassment was difficult to determine, although direct observation and very infrequent media reports suggested it occurred in the workplace and in the streets. There were anecdotal reports of men accused of sexual harassment being transferred to other offices to prevent further incidents. Sexual harassment in the streets was a major problem for women. A 2010 report by the Athar Foundation for Development found that 98.8 percent of women faced sexual harassment in the streets. The website of Safe Streets, an NGO focusing on sexual harassment, contained many anecdotal reports of harassment, and there was anecdotal evidence that young girls refused to attend school to avoid harassment en route.

Reproductive Rights: There were no reports of government interference in the right of couples and individuals to decide freely and responsibly the number, spacing, and timing of children, to have the information and means to do so, and to attain the highest standard of reproductive health, free from discrimination, coercion, and violence. Social pressure, women’s lack of knowledge about reproduction, and the young age of marriage for many girls, however, meant many

women had little or no real control over reproduction. Access to contraceptives and procedures involving reproductive and fertility treatments required the consent of both husband and wife. It was technically illegal for single women to buy and use contraception, but if a particular contraceptive (such as the birth control pill) had another medical use, a woman could procure it. The information and means to make decisions on reproduction were available in cities, although contraception and skilled pre-, post-natal, and obstetric care, were too costly for much of the population. International NGOs reported that in areas controlled by Houthi forces, authorities forbade birth control devices and other forms of contraception. Women relied on the black market to obtain them.

The UN Population Division estimated that 28 percent of married women used a modern method of contraception during the year. Most women gave birth at home attended by traditional midwives and did not see a doctor during their pregnancies or after delivery. According to UN sources, the maternal mortality ratio was 270 deaths per 100,000 live births; there were an estimated 2,100 maternal deaths during the year. Major factors contributing to the high maternal mortality rate included lack of access to skilled health care including emergency obstetric care, adolescent pregnancy, and lack of awareness and education on reproductive health.

Discrimination: Women faced deeply entrenched discrimination in both law and practice in all aspects of their lives. Women cannot marry without permission of their male guardians; do not have equal rights in inheritance, divorce, or child custody; and have little legal protection. Women do not enjoy the same legal status as men in family law, property law, inheritance law, and the judicial system. They experienced discrimination in areas such as employment, credit, pay, owning or managing businesses, education, and housing (see section 7.d.). The 48.5 percent female literacy rate, compared with 82.1 percent for men, accentuated this discrimination. Women accounted for 30.5 percent of university students countrywide. The NDC adopted a 30 percent quota for admission of women to institutions of higher education and recommended a 30 percent quota for women in all government agencies be included in the new constitution.

Under family law and inheritance law, courts awarded custody of children over a specified age (seven years for boys and nine years for girls) to the divorced husband or the deceased husband's family. In numerous cases former husbands prevented divorced noncitizen women from visiting their children. Under sharia inheritance laws, which assume that women receive support from their male relatives, daughters receive half the inheritance and accidental death or injury compensation awarded to their brothers.

Women also faced unequal treatment in courts, where the testimony of one man equals that of two women. Female parties in court proceedings such as divorce and other family law cases normally deputized male relatives to speak on their behalf, although they have the option to speak for themselves.

A husband may divorce a wife without justifying the action in court. In the formal legal system, a woman must provide justification. Under tribal customary law, however, a woman may divorce without justification.

Some local interpretations of sharia prohibit a Muslim woman from marrying a non-Muslim man, others permit marrying a Christian or Jewish man. All interpretations allow a Muslim man to marry a Christian or Jewish woman. The foreign wife of a male citizen must remain in the country for two years to obtain a residency permit.

Any citizen who wishes to marry a foreigner must obtain the permission of the MOI (see section 1.f.). A woman wishing to marry a foreigner must present proof of her parents' approval. A foreign woman who wishes to marry a male citizen must prove to the ministry that she is "of good conduct and behavior."

Women experienced economic discrimination (see section 7.d.).

Government mechanisms to enforce equal protection were weak, although the Ministry of Human Rights launched several programs promoting equal rights for women in business and established a structure to investigate complaints of discrimination against women.

According to the Ministry of Social and Labor Affairs, more than 170 NGOs worked for women's advancement. The Arab Sisters Forum for Human Rights worked with other NGOs, the government, and donor countries to strengthen women's political participation. The Yemeni Women's Union and Women's National Committee, with support from the Ministry of Human Rights, conducted workshops on women's rights.

Children

Birth Registration: Citizenship is derived from one's parents. A child of a Yemeni father is a citizen. Yemeni women may confer citizenship on children born of a foreign-born father if the child is born in the country. If the child is not born in the

country, in rare cases the MOI may permit a woman to transmit citizenship to the child if the father died or abandoned the child. The NDC recommended that a parent of either sex be able to convey citizenship.

There was no universal birth registration, and parents, especially in rural areas, never registered many children or registered them several years after birth. The requirement that children have birth certificates to register for school was not universally enforced, and there were no reports of authorities denying educational or health care services and benefits to children based on lack of registration. The lack of birth registration compounded difficulties in proving age, which led to authorities recruiting minors into the military, and trying and sentencing juveniles as adults, including imposing the death penalty.

Education: The law provides for universal, compulsory, and tuition-free education from ages six to 15. Public schooling was free to children through the secondary school level, but many children, especially girls, did not have easy access. Although attendance was nominally mandatory through the ninth grade, only 79 percent of boys and 60 percent of girls attended primary school. The gender gap was larger for secondary and postsecondary schooling, with 34 percent of girls attending secondary school and only 6 percent continuing to postsecondary education. The lack of private toilet facilities for girls in school contributed to the drop in female attendance after puberty.

Medical Care: Due to social discrimination, male children received preferential medical treatment.

Child Abuse: The law does not define or prohibit child abuse, and there was no reliable data on its extent. Authorities considered violence against children a family affair, and it was more likely to be handled through tribal arbitration than to be reported to police. NGOs initiated awareness campaigns against child abuse, and no negative reaction was reported, but they could not assess the campaigns' effectiveness.

Early and Forced Marriage: Early and forced marriage was a significant, widespread problem. There was no minimum age for marriage, and girls were married as young as eight years of age, which traditionalists argued served to ensure they were virgins at the time of marriage. UNICEF reported that child marriage declined during the past several years, with 10 percent of 15-year-old girls married before 15 and 32 percent of girls married by 18. The law forbids sex

with underage brides until they are “suitable for sexual intercourse,” an age that is undefined.

Female Genital Mutilation/Cutting: The law does not prohibit female genital mutilation/cutting (FGM/C), although a 2001 ministerial directive banned the practice in all government and private health facilities. There were reports that girls faced FGM/C (see also section 6, Women).

Other Harmful Traditional Practices: Cases of honor killing--the murder of a daughter or sister who “shamed” the family--occurred, particularly in rural areas. Most cases of honor killing went unreported, and authorities investigated very few. In Ta’iz in October 2013, after discovering his 15-year-old daughter talking on the telephone with her fiancé, a man murdered his daughter by burning her alive. In Sana’a family members pushed a 17-year-old girl from a fourth floor window after she attempted to elope. Authorities had returned her to the family home. There have been reports that family members murdered both male and female victims of rape or sexual abuse who reported the crime to protect the family’s honor.

Sexual Exploitation of Children: The law does not define statutory rape and does not impose an age limit for consensual sex. The law prohibits pornography, including child pornography. There were reports that criminals coerced underage girls into prostitution in major cities, particularly in Aden and Sana’a. Observers reported the practice of foreigners visiting the country to enter short-term marriages with underage girls.

The country was a destination for sex tourism. No laws specifically address sex tourism from outside the country, but it was particularly a problem in Aden and Sana’a. The MOI attempted to stop the use of “temporary marriage” provisions of Islamic law as a vehicle for sex tourism (see section 1.f.). There were reports that elements within the government security forces exacted bribes and fees for facilitating temporary marriages.

Child Soldiers: See section 1.g., Child Soldiers.

International Child Abductions: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction.

Anti-Semitism

Fewer than 200 Jews remained in the country, residing in two communities in Sana'a and Amran Governorate. Harassment of the Amran community increased following the resumption of fighting between Houthis and local Sunni tribal elements in October 2013. Reportedly, local residents of Amran threw stones at community members, harassed women in public, and pressured Jews to convert to Islam. Jewish children stopped attending local schools with Muslim classmates, and the men were unable to work and largely confined with their families to their homes. To deter harassment many Jewish men cut their beards and side curls. Weak law enforcement put the Jewish community at risk, particularly following the light sentences imposed on militants who killed members of the Jewish community in 2008 and 2012. The Hadi government continued to protect the Sa'ada Jewish community in Sana'a and provided secure housing and a living stipend.

In December there was a report that Houthis detained a Jewish man in Amran allegedly for doing business with Israel. Western government officials spoke to the man's family and learned that a family member had made false accusations against the man to the Houthis. At year's end he was released and reunited with his family in Sana'a.

Although criticism of Israeli actions was common, anti-Semitic material was rare. Many Yemenis were proud to sustain a small Jewish community with some charities reportedly donating food and gifts during Jewish holidays, and media coverage of the country's Jews was generally positive. The most prominent exception was the slogan of the Houthi movement, "Death to Israel, a curse on the Jews."

Members of the Jewish community are not eligible to serve in the military or federal government. Authorities forbid them from carrying the ceremonial Yemeni dagger. President Hadi reportedly promised the Jewish community would be represented in the 565-member NDC but revoked the offer following pressure from Salafi groups.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Persons with Disabilities

Several laws mandate the rights and care of persons with disabilities, but authorities enforced them poorly, due to social stigma and official indifference. The law permits persons with disabilities to exercise the same rights as the able-bodied, but it was unknown whether this applies in practice.

The law reserves 5 percent of government jobs for persons with disabilities, and the law mandates the acceptance of persons with disabilities in universities, exempts them from paying tuition, and requires that schools be made more accessible to persons with disabilities. The extent the government implemented these laws was unclear.

Children with disabilities may attend public schools, although schools make no special accommodations for them. There were some private educational institutions for persons with disabilities in large cities. Many parents refused to send their children with disabilities to public school due to concern about potential harassment by other children.

Although the law mandates new buildings have access for persons with disabilities, compliance was poor. Most persons with disabilities relied on their extended family for support.

Information about patterns of abuse of persons with disabilities in educational and mental health institutions was not publicly available.

Authorities imprisoned persons with mental disabilities with criminals without providing adequate medical care and in some instances without legal charge. The MOI reported that at times family members brought relatives with mental disabilities to ministry-run prisons, asking officers to imprison the individuals; ministry-run prisons in Sana'a, Aden, and Ta'iz operated semiautonomous units for prisoners with mental disabilities in cooperation with the Red Crescent Society. Conditions in these units reportedly were deficient in cleanliness and professional care. At year's end neither the MOI nor the Ministry of Health had acted on a 2005 MOI initiative to establish centers for the mentally ill.

The Ministry of Social and Labor Affairs is responsible for protecting the rights of persons with disabilities. The government's Social Fund for Development and the Fund for the Care and Rehabilitation of the Disabled, administered by the ministry, provided limited basic services and supported more than 60 NGOs assisting persons with disabilities.

National/Racial/Ethnic Minorities

Although racial discrimination is illegal, racial and social discrimination against the Muhamasheen (estimated to constitute up to 10 percent of the population), who traditionally provided low-prestige services such as street sweeping, was a problem. The Muhamasheen generally lived in poverty and endured persistent societal discrimination. Muhamasheen women were particularly vulnerable to rape and other abuse as a result of the general impunity for attackers due to the women's low-caste status. In 2011 the UN Committee on the Elimination of Racial Discrimination stated that it was concerned by the "persistent and continued social-economic exclusion of descent-based communities such as the Muhamasheen" and recommended the government strengthen its efforts to improve the welfare of the Muhamasheen in the fields of education, health care, housing, and property ownership. The government's social fund for development provided basic services, including construction of housing, to assist its members. In some cases tribes "adopted" Muhamasheen in exchange for allegiance, which provided them protection and higher status. In October 2013 the NDC's Rights and Freedoms Working group announced agreement on measures to protect the rights of the Muhamasheen and to ban discrimination against them. It recommended this provision for inclusion in the new constitution.

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

Lesbian, gay, bisexual, and transgender (LGBT) persons faced discrimination and could face the death penalty, although there have been no executions of LGBT persons in more than a decade. The penal code criminalizes consensual same-sex sexual conduct, with the death penalty as a sanction, under the country's interpretation of Islamic law. In January in Lahj Governorate, a motorcyclist shot and killed a man suspected of being gay; officials reported that at least 34 such killings occurred in the past two years.

Due to the illegality of and possible severe punishment for consensual same-sex sexual conduct, there were no LGBT organizations. Because the law does not prohibit discrimination, the government did not consider LGBT problems "relevant" for official reporting, and few LGBT persons were open about their sexual orientation or gender identity. The government blocked access to LGBT internet sites.

HIV and AIDS Social Stigma

While there were no reports of social violence against persons with HIV/AIDS, the topic was socially sensitive and infrequently discussed. Senior imams participated in international meetings on community support for persons with HIV/AIDS, and the country's senior cleric advocated on television for family and community compassion. Discrimination against persons with HIV/AIDS is a criminal offense, but incidents occurred during the year. HRW claimed that a private hospital expelled an HIV/AIDS-positive woman as she was about to give birth. Hospital staff detained her husband and threatened him with prosecution on charges of concealing his wife's infection.

Other Social Violence or Discrimination

In July in Hadramawt Governorate, AQAP executed three individuals it accused of "witchcraft and sorcery." It also distributed flyers in Hadramawt threatening to "sever the hands" of corrupt officials.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The labor code provides for the right of salaried private-sector employees to organize and bargain collectively without government interference. These protections do not apply to public servants, day laborers, domestic servants, foreign workers, and other groups who together make up the majority of the work force. The civil service code covers public servants. The law generally protects employees from antiunion discrimination and prohibits dismissal for union activities.

While unions may negotiate wage settlements for their members and may conduct strikes or other actions to achieve their demands, there are significant restrictions on the right to strike. Workers have the right to strike only if prior attempts at negotiation and arbitration fail. They must give advance notice to the employer and government and receive prior written approval from the executive office of the General Federation of Unions of the Republic.

Employees may appeal any dispute, including cases of antiunion discrimination, to the Ministry of Social and Labor Affairs. Employees also may take a case to the Labor Arbitration Committee, which the ministry chairs, composed of an employer representative and a representative of the General Federation of the Yemeni

Workers' Trade Unions (GFYWTU). Generally, parties preferred to resolve cases via the committee system, since court proceedings were costly and the judicial system was often corrupt.

According to the GFYWTU, the government allowed public sector employees, especially those employed in ministries, to unionize and strike if the unions had more than 200 members. Otherwise, authorities prohibited public employees from unionizing, and they must take labor grievances to court.

Although not required by law, all unions are federated within the GFYWTU. While not formally affiliated with the government, the GFYWTU is the only official federation and works closely with the government to resolve labor disputes.

The government did not respect freedom of association and the right to collective bargaining. The government interfered in union activities. The Ministry of Social and Labor Affairs required union elections to take place at least once every four years, with ministry officials present as witnesses; the government subjected committees within ministries, which civil service codes regulate, to board elections every two years. The ministry also has veto power over collective bargaining agreements.

The law requires 18 employees to establish a union in a workplace. The majority of private-sector employers registered only five to 10 employees, allowing them to avoid many social security and labor union regulations. Companies with more than 100 employees employed fewer than 100,000 persons. Union sources stated the private sector has begun to recognize the benefit of working with unions to meet employee demands.

The government at times sought to influence unions by inserting its own personnel into them. In some instances political parties also attempted to control unions and professional associations by influencing internal elections or placing in them their own personnel, usually tied to the government, in positions of influence.

In practical terms a union's ability to strike depended on its political strength. Under the transitional government, unions and associations often were accused of being tied to a political party. The Development Working Group of the NDC called for the independence of all unions.

b. Prohibition of Forced or Compulsory Labor

The law prohibits all forms of forced or compulsory labor, including by children, but the government did not effectively enforce such laws due to lack of resources and financial interests of the elite, many of whom supported such forms of labor. There were numerous reports of such practices in both urban and rural areas. In some instances employers forced children into domestic servitude and agricultural work (see section 7.c.) and women into domestic servitude or prostitution. Migrant workers were vulnerable to forced labor conditions.

See also the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

c. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits child labor. The government did not effectively implement the law, and there were inconsistencies in the law with regard to the minimum age for work and hazardous work. The director of the Combating Child Labor Unit (CCLU) within the Ministry of Social and Labor Affairs estimated informal minimum wages paid by private-sector businesses to children ranged between 430 and 650 rials (\$2 to \$3) per day.

Current regulations reportedly do not clearly specify a minimum work age, but common practice was 14 or 15 years. The ILO characterizes the country's minimum work age as "the minimum age for admission to employment which is free of any hazards may not be lower than the age of completion of compulsory education and may not be less than 14 years."

Children under 18 with formal contracts may work no longer than six hours a day, with a one-hour break after four consecutive hours, on weekdays between 7 a.m. and 7 p.m. The law prohibits children under 18 from engaging in hazardous work based on job, work conditions, and health circumstances, rather than by specific sectors or industries.

Child labor was common, including its worst forms. According to a 2013 ILO study, more than 1.3 million children participated in the workforce, including 469,000 children between ages five and 11. The results of the country's 2012 national child labor survey demonstrated that 17 percent of 7.7 million children in the five to 17 age group and 11 percent of those between the ages of five to 11 were involved in child labor.

In rural areas family poverty and traditional practice led many children to work in subsistence farming. In urban areas children worked in stores and workshops, sold goods, and begged on the streets. Many children of school age worked instead of attending school, particularly in areas where schools were not easily accessible. According to the Ministry of Social and Labor Affairs, small factories and shops, particularly in rural areas, employed children outside the family. Continued weak economic conditions forced hundreds of children to leave schools to work, especially in the fishery and agriculture sectors. Children also reportedly worked in dangerous conditions in construction, offshore fishing, mining, and waste dumps.

Although penalties exist to punish the worst forms of child labor, the government made minimal enforcement efforts. The CCLU was responsible for implementing and enforcing child labor laws and regulations, but extensive budget cuts reduced the unit's resources and, together with the security situation, hampered enforcement. The 160 child labor inspectors did not travel to carry out their work during the year.

No information was available on arrests, investigations, or prosecutions for child labor offenses. If inspectors found child labor violations, most cases were resolved between inspectors and employers with a verbal warning and by working with the employer to change the child's job to remove the child from danger.

See also the Department of Labor's *Findings on the Worst Forms of Child Labor* at www.dol.gov/ilab/reports/child-labor/findings/.

d. Discrimination with Respect to Employment or Occupation

Labor laws and regulations prohibit discrimination with regard to race, sex, color, beliefs, language, or disability, and specifically state, "Women shall be equal with men in relation to conditions of employment and employment rights." The law does not address sexual orientation, gender identity, HIV status, or other communicable diseases. Authorities did not consistently enforce the laws, and discrimination based on race, gender, and disability remained a serious problem in employment and occupation.

Women's rights activists and NGOs reported discrimination was a common practice in the public and private sectors. Despite the government's goal of increasing the role of women in the economic sector, women age 15 and older represented only 25 percent of the formal workforce, largely due to barriers to

education and social restrictions that precluded women from seeking and gaining employment. Cultural barriers also restricted the exercise of women's property rights. In most rural areas, social norms largely prevented women from owning land. Cultural barriers also restricted women's access to formal credit.

e. Acceptable Conditions of Work

There was no established minimum wage in the private sector. The minimum civil service wage was 21,000 rials (\$97.90) per month; government agencies implemented it. The labor law provides equal wages for public-sector workers employed in joint ventures between the government and the private sector.

The law specifies a maximum 48-hour workweek with a maximum eight-hour workday, although many workshops and stores operated 10- to 12-hour shifts without penalty. The 35-hour workweek for government employees was nominally seven hours per day from Sunday through Thursday. The law requires overtime pay, paid holidays, and leave, and prohibits excessive or compulsory overtime. Government enforcement of labor law was weak to nonexistent due to lack of capacity, corruption, and constrained resources. Working conditions generally were poor, and wage and overtime violations were common. Foreign migrant workers, youth, and female workers typically faced the most exploitative working conditions.

The law prescribes occupational, safety, and health standards. It states every employer must provide safe and healthy conditions for workers. The law recognizes the right of workers to remove themselves from dangerous work situations, and workers may challenge dismissals based on such actions in court. There were no reported instances of this during the year. The safety law does not apply to domestic servants, casual workers, or agricultural workers.

The Ministry of Social Affairs and Welfare's vocational safety department relied on inspection committees to conduct primary and periodic safety and health investigations. Such committees were constrained by a lack of funding and resources, such as vehicles to travel to inspection sites. The Ministry of Social and Labor Affairs had 160 safety inspectors who also worked as child labor inspectors. Some foreign-owned companies and major manufacturers implemented higher health, safety, and environmental standards than the government requires. The Ministry of Oil has monitoring responsibility for oil-related businesses. There was no credible information available regarding work-related accidents or fatalities during the year.